

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT IN AND FOR MANATEE  
COUNTY, FLORIDA

The Crossings Ministries, Inc.  
Plaintiff(s)

v.

Case Number 25CC 2092

Michael Rogalin  
Defendant(s)

ORDER DENYING HEARING TIME

This matter is before the Court on Defendant's Answer, filed 6/24/25. Having reviewed the filing and the court file, and being otherwise duly advised in the premises, the Court finds and orders as follows.

1. The Plaintiff filed the Complaint on 6/13/25, seeking possession (unlawful detainer)
2. The Defendant(s) was/were served on 6/16/25, making any response due \_\_\_\_\_.  
☐ Date of service unknown, as return of service not showing in docket as of the writing of this Order.
3. The Court denies setting any hearing time because:
  - a. ☐ the response is untimely
  - b. ☒ no legal defense raised
  - c. ☐ no monies deposited into the registry
  - d. ☐ no request for the Court to determine rent made
  - e. ☒ other: Parties may proceed accordingly

See §§ 51.011(1), 83.60(2), 723.061(3) Fla. Stat.; *Stephens-Williams v. Johnson*, 181 So. 3d 577 (Fla. 4<sup>th</sup> DCA 2016) (section 83.60(2) "is unforgiving, and failure to timely file [an answer] constitutes an absolute waiver of the tenant's defenses other than payment"); *Crocker v. Diland Corp.*, 593 So. 2d 1096 (Fla. 5<sup>th</sup> DCA 1992) (discussing the summary procedure statute).

4. Any remedy sought by the Defendants lies with the Plaintiff. Parties are encouraged to discuss settlement.

DONE AND ORDERED in Chambers, Bradenton, Manatee County, Florida on this 24 day of

June 2025

Renee Annunzio  
County Judge

Copies to:

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